

		Creditor thus was required to comply with the requirements of Code of Civil Procedure section 415.20, subdivision (b). Judgment Creditor also contends Jouini failed to give notice to the landlord that Jouini vacated the premises. Judgment Creditor asserts a tenant who abandons a lease without notifying the landlord remains liable for the rent as it becomes due. Although this may be true, Judgment Creditor fails to explain how this means the substituted service effected on Jouini in this instance was proper. Liability and valid service of process are two entirely different things. Judgment Creditor also argues equitable relief is not available because Jouini failed to demonstrate a meritorious defense and satisfactory excuse for not presenting a defense to the original action. Jouini does not seek relief based on the court's equitable powers. Relief is sought pursuant to Code of Civil Procedure section 473, subdivision (d). Moreover, where service of the summons and complaint is invalid, it is not necessary to show a meritorious defense. (Weil & Brown, Cal. Prac. Guide: Civil Proc. Before Trial (The Rutter Group 2025) ¶ 5:494, citing <i>Peralta v. Heights Med. Ctr. Inc.</i> (1988) 485 U.S. 80, 86-87.) Based on the foregoing, the motion is GRANTED. The default and default judgments entered in this matter against Jouini are hereby VACATED. On its own motion, the court schedules an Order to Show Cause as to why the case should not be dismissed as to Jouini for failing to serve Jouini within 3 years of filing of the complaint. (Code Civ. Proc., §§ 583.210, 583.250, subd. (a)(2), 583.240.) The <u>Order to Show Cause hearing is set for Thursday, July 16, 2026, at 2:00 p.m., in Department C23.</u> Any opposition by Judgment Creditor must be filed and served by June 29, 2026, and any reply by Jouini must be filed and served by July 8, 2026. A status conference is set for the same time. Judgment Creditor's counsel is ordered to give notice of this ruling
9.	<i>Petition of Interinsurance Exchange of the Automobile Club</i> 2025-01529307	Before the court is the unopposed motion to obtain cellular phone records from Verizon or alternatively, to enforce deposition subpoena filed by petitioner Interinsurance Exchange of the Automobile Club (Petitioner). For the reasons set forth below, the motion is GRANTED. (Code Civ. Proc., § 1987.1, subd. (a).)

		Petitioner seeks to obtain cellular phone records for the phone number (949) xxx-8691, the number for Petitioner's insured, Erin Elizabeth McReynolds (Ms. McReynolds) for the time period of August 1, 2025, through September 30, 2025, pursuant to a deposition subpoena issued to Verizon on January 5, 2026. Petitioner contends the records sought are relevant and reasonably necessary to process and investigate the claim submitted by Ms. McReynolds regarding a theft loss occurring on August 31, 2025. Both Ms. McReynolds and Verizon were duly served with a copy of the instant motion, but no oppositions were filed. Moreover, Ms. McReynolds has signed a consent form for the release of the records and thus is agreeable to releasing the records. (Exh. B to Motion.) Ms. McReynolds also does not dispute the records are relevant and reasonably necessary to process and investigate the subject claim. Based on the foregoing, the motion is GRANTED. Verizon is ordered to produce documents responsive to the deposition subpoena within 20 days of service of notice of this order. Petitioner is ordered to submit a proposed order in accordance with this ruling, and to give notice of this ruling.
10.	<i>Claim of Yang</i> <i>2025-01523208</i>	Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture. Petitioner brings this motion under Health and Safety Code section 11488.5 on the ground no one has filed a timely and proper claim to the \$57,810 in United States Currency Petitioner seized on or about November 7, 2024. Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof